ENCOUNTERING THE QUESTION AGAIN

A police encounter killing of a rape-murder accused has Bengal in a heated political and public debate. Is 'quick justice' the antidote to heinous crime? Is it legal?

By **Arkamoy Datta Majumdar**

LAWLESSNESS WAS THE TAINT THAT BECAME AN ALBATROSS for the deposed Trinamool Congress. The progress of the Suvendu Adhikari government on that front, therefore, attracts much interest. West Bengal has been rewarded with plenty of visually striking gestures of tough policing—including the parading of arrested offenders in their underwear, with a rope tied around their waist, an act that drew judicial admonition. But the issue has reached a flashpoint with the police encounter killing of Prabhas Mondal, prime accused in the rape and murder of a minor girl in Baruipur.

The question is an age-old one in India. Is this justice? Especially justice neither delayed nor denied, but delivered—on the spot? Does this departure from due process itself threaten to become a new unwritten due process?



IS IT JUSTICE? Rape-murder accused Prabhas Mondal in Baruipur

SAME OLD STORY

The police version of Baruipur recalls countless precedents from across India. This says Mondal was killed in the wee hours of July 8, during a late-night reconstruction of the crime—he allegedly snatched a service weapon and opened fire in an attempt to escape, prompting officers to retaliate in self-defence. He later died in hospital. The narrative has intensified an already polarised debate, drawing comparisons with Uttar Pradesh's hard encounter policy.

The Trinamool was off the blocks fast, questioning the circumstances surrounding the encounter. Senior MP Saugata Roy did not hedge his condemnation. "This is the worst form of police brutality," he said, adding that the timing raised serious questions. The CM and the director general of police had visited Baruipur a day earlier, he noted, with the DGP directed to submit a final report within 72 hours. He alleged Bengal was adopting the "Yogi model", calling it a breakdown of accountability.

The BJP defended the police action, arguing the government was demonstrating "zero tolerance" towards crimes against women. "No criminal or rapist will be spared," state party chief Samik Bhattacharya said. "The BJP had promised the women of Bengal—*'Bhoy out, bhorosa in* (Fear out, trust in)'. This was the message of the PM. We are doing what we had said in our manifesto." The party also renewed the demand to reopen the 2013 Kamduni gangrape-cum-murder case, alleging that the earlier probe had failed to deliver justice.